

TENTATIVE RULING

Case: USE Credit Union v. Vidales
Case No. CV2021-1283

Hearing Date: August 27, 2026 **Department Thirteen** **9:00 a.m.**

The Court declines to consider: (1) defendants Mark E. Vidales and Catherine M. Vidales' evidentiary objections to declaration of Karel Rocha (filed August 13, 2026); and (2) defendants' reply (filed August 13, 2026). Based on the initial hearing date (June 25, 2026), these documents are untimely filed. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Defendants' motion to tax costs is **GRANTED IN PART**. (Code Civ. Proc., § 685.070, subd. (c).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, citations omitted.) As to the "other: Misc. Provisions: 08/12/24-04/17/26" entry in plaintiff USE Credit Union's memorandum of costs after judgment (filed May 19, 2026), the Court finds that defendants have properly objected to this entry and plaintiff has not justified this cost. (*Ibid.*)

As to defendants' motion to tax attorney's fees (item 7), this request is denied. Although attorney's fees incurred in enforcing a judgment may be sought by motion, a motion is not required if otherwise timely. (Code Civ. Proc., § 685.070; *Carnes v. Zamani* (2007) 488 F.3d 1057, 1060 ["The judgment creditor may seek to recover attorney fees incurred in enforcing a judgment by either filing a memorandum of costs or by serving a noticed motion"].)

In all other respects, defendants have failed to show that their assert grounds preclude plaintiff from recovering all or some of its costs. (Code Civ. Proc., §§ 680.240, 685.040, Defendants' decl., ¶ 3, Exhibit B; Rocha decl., ¶ 20.)

Therefore, the Court taxes plaintiff's costs in the amount of **\$1,048.20**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.